

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Donaghy	Team: Squad #14	CCRB Case #: 202007249	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 10/12/2020 1:45 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 67
Date/Time CV Reported Mon, 10/12/2020 2:05 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/02/2020 12:10 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Vito Polisenio	18478	951070	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Aleksandra Chorazewicz	1863	954641	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vito Polisenio	Discourtesy: Police Officer Vito Polisenio spoke discourteously to § 87(2)(b)	A . Complainant Unavailable

Case Summary

On October 12, 2020, § 87(2)(b) called 911 and was transferred to IAB, where he filed this complaint. On November 2, 2020, the CCRB received this case from IAB.

IAB provided the CCRB with a phone number for § 87(2)(b). Between November 10, 2020, and December 4, 2020, five phone calls were placed to this phone number. These phone calls either went to an automated message stating that the number was not accepting phone calls or rung continuously without connecting to either § 87(2)(b) or to a voice messaging system.

On November 20, 2020, a Lexis search conducted for § 87(2)(b) using his date of birth identified 14 additional phone numbers. On November 24, 2020, phone calls were made to each of those 14 phone numbers. Of those 14 phone calls, 7 connected to automated messages that the number is not in service, five did not connect but also did not go to an automated message, one went to a voicemail box, and one connected to an individual who confirmed it was a wrong number. On November 4, 2020, phone calls were made to the six phone numbers that resulted in inconclusive results or went to voicemail, of which four phone calls disconnected without connecting to § 87(2)(b) or a voice message system, and two rang to a voice messaging system. On November 8, 2020, a third set of phone calls was made to those same six numbers, of which two connected to voice messaging system, two connected to an automated message that the numbers were not in service, and two did not connect and went to a dial tone. On November 15, 2020, and November 18, 2020, a fourth and fifth set of phone calls were made to the remaining four phone numbers, with two going to a dial tone twice and two going to voicemail twice.

On November 25, 2020, a CLEAR search was conducted for § 87(2)(b) using his date of birth, which identified eight additional potential phone numbers. On December 4, 2020, phone calls were placed to each of those eight phone numbers, of which three connected to individuals who stated that they were not § 87(2)(b) and that they did not know who § 87(2)(b) is, two connected to automated messages that stated that the phone number is not functional, and three disconnected without connecting to § 87(2)(b) or a voice message system. On November 25, 2020, phone calls placed to the three phone numbers that disconnected without connecting to § 87(2)(b) or a voice message system, and all three phone calls connected to automated messages stating that the phone number was not functional.

The November 20, 2020, Lexis search identified thirteen email addresses for § 87(2)(b) and the November 25, 2020, CLEAR search did not identify any email addresses for § 87(2)(b). On November 20, 2020, and on December 18, 2020, emails were sent to each of the thirteen email addresses identified for § 87(2)(b).

On November 19, 2020, a search in the Department of Corrections databases for New York City and New York State showed that § 87(2)(b) is not incarcerated.

§ 87(2)(g)

It is therefore recommended that this case be closed as **complainant unavailable**.

Squad No.: 14

Investigator: Matthew Donaghy Inv. Matthew Donaghy December 19, 2020
Signature Print Title & Name Date

Squad Leader: Cassandra Fenkel IM Cassandra Fenkel December 22, 2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date